

Smt. Jyoti vs Devilal on 17 October, 2023

Author: Gurpal Singh Ahluwalia

Bench: Gurpal Singh Ahluwalia

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M.P.No.475/2023

IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SHRI JUSTICE GURPAL SINGH AHLUWALIA
ON THE 17th OF OCTOBER, 2023
MISC. PETITION No. 475 of 2023

BETWEEN: -

SMT. JYOTI W/O DEVILAL D/O NEHRU KAWDE,
AGED ABOUT 23 YEARS, OCCUPATION: CASTE
GOND R/O VILLAGE UBHARIYA TEHSIL MULTAI
P.S. SAIKHEDA DISTRICT NARMADAPURAM
(MADHYA PRADESH)

.....PETITIONER

(BY SHRI AHMAD SAJID HUSSAIN - ADVOCATE)

AND

DEVILAL S/O NAHALE SALAME, AGED ABOUT 32
YEARS, VILLAGE BODALPATHAR P.S. SAIKHEDA
TEHSIL MULTAI DISTRICT BETUL AND PRESENT
ADDRESS IS MINAKSHI CHOWK P.S. WIRELESS
VIBHAG (MADHYA PRADESH)

.....RESPONDENTS

(NONE)

This petition coming on for admission this day, the court passed
the following:

ORDER

None for the respondent, though served.

2. This miscellaneous petition under Article 227 of Constitution of India has been filed against order dated 10.12.2022 passed by First District Judge, Multai, District Betul in RCS HM No.17-A/2022 by which application filed by petitioner under Section 2 (2) of Hindu Marriage Act has been rejected.

3. It is submitted by counsel for petitioner that undisputedly, the petitioner as well as respondent belong to scheduled tribe and in view of Section 2 (2) of Hindu Marriage Act, they are not governed

by provisions of Hindu Marriage Act. Therefore, the application filed by respondent under Section 13 of Hindu Marriage Act is not maintainable and trial Court has wrongly rejected the application filed under Section 2(2) of Hindu Marriage Act for dismissal of case.

4. It is submitted that merely because the petitioner did not raise an objection at the earliest or herself had moved an application under Section 24 of Hindu Marriage Act would not confer a jurisdiction on the trial Court because if the Court does not have a jurisdiction, then even the consent of the parties will not confer the jurisdiction on the trial Court.

5. None for the respondent, though served.

6. Heard the learned counsel for petitioner.

7. Section 2 (2) of Hindu Marriage Act reads as under:-

"(2) Notwithstanding anything contained in sub-section (1), nothing contained in this Act shall apply to the members of any Scheduled Tribes within the meaning of clause (25) of Article 366 of the Constitution unless the Central Government, by notification in the Official Gazette, otherwise directs."

8. The undisputed facts are that the petitioner and respondent belong to Scheduled Tribe. The only question for consideration is as to whether the provisions of Hindu Marriage Act are applicable to the members of Scheduled Tribe or not.

9. It is not the case of the respondent that the provisions of Hindu Marriage Act has been made applicable by the Central Government by notification in the official gazette.

10. The Supreme Court in the case of Surajmani Stella Kujur (Dr) v. Durga Charan Hansdah, reported in (2001) 3 SCC 13 has held as under:-

"3. Section 2 of the Act specifies the persons to whom the Act is applicable. Clauses (a), (b) and (c) of sub- section (1) of Section 2 make the Act applicable to a person who is a Hindu by religion in any of its forms or developments including a Virashaiva, a Lingayat or a follower of the Brahmo, Prarthana or Arya Samaj and to a person who is a Buddhist, Jain or Sikh by religion. It is also applicable to any other person domiciled in the territories of India who is not a Muslim, Christian, Parsi or Jew by religion. The applicability of the Act is, therefore, comprehensive and applicable to all persons domiciled in the territory of India who are not Muslims, Christians, Parsis or Jews by religion.

6. In this appeal the parties are admittedly tribals, the appellant being an Oraon and the respondent a Santhal. In the absence of a notification or order under Article 342 of the Constitution they are deemed to be Hindus. Even if a notification is issued under the Constitution, the Act can be applied to Scheduled Tribes as well by a

further notification in terms of sub-section (2) of Section 2 of the Act. It is not disputed before us that in the Constitution (Scheduled Tribes) Order, 1950 as amended by Scheduled Castes and Scheduled Tribes Order (Amendment) Acts 63 of 1956, 108 of 1976, 18 of 1987 and 15 of 1990, both the tribes to which the parties belong are specified in Part XII. It is conceded even by the appellant that "the parties to the petition are two tribals, who otherwise profess Hinduism, but their marriage being out of the purview of the Hindu Marriage Act, 1955 in light of Section 2(2) of the Act, are thus governed only by their Santhal customs and usage".

11. Furthermore, merely because the petitioner did not raise an objection at the earliest and herself had moved an application under Section 24 of Hindu Marriage Act would not confer a jurisdiction on a Court, which is otherwise expressly prohibited under the law. It is well established principle of law that the parties cannot confer a jurisdiction on a Court, which otherwise does not have the same.

12. Under these circumstances, this Court is of the considered opinion that the trial Court committed a material illegality by rejecting the application filed under Section 2(2) of Hindu Marriage Act. Accordingly, order dated 10.12.2022 passed by First District Judge, Multai, District Betul in RCS HM No.17-A/2022 is hereby set aside. The application filed by the petitioner under Section 2(2) of Hindu Marriage Act is hereby allowed.

13. It is held that the parties are not governed by the Hindu Marriage Act. Accordingly, the application filed by respondent under Section 13 of Hindu Marriage Act is dismissed as not maintainable.

14. The petition succeeds and is hereby allowed.

(G.S. AHLUWALIA) JUDGE vinay* VINAY KUMAR BURMAN 2023.10.19 19:22:56 +05'30'